U.S. Department of Health and Human Services

Office of Inspector General
ATTN: Whistleblower Protection / Investigations Division
330 Independence Avenue, SW
Washington, DC 20201

Date: October 7, 2025

From:
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Subject: Request for Investigation – Retaliation, Misuse of Federal Authority, and Fraudulent Conduct by Indian Health Service Officials

Dear Inspector General,

I respectfully submit this complaint for formal review by the **U.S. Department of Health and Human Services (HHS) Office of Inspector General (OIG)**. This complaint details evidence of **fraudulent misuse of government authority, retaliation against a federal whistleblower, and waste of federal funds** by senior officials at the **Indian Health Service (IHS) – Phoenix Indian Medical Center (PIMC)**.

These actions constitute violations of:

- **5 U.S.C. § 2302(b)(8)–(9)** – prohibited personnel practices (whistleblower retaliation);
- **5 U.S.C. § 6329b** – unlawful extension of investigative leave;
- **5 C.F.R. § 2635.101 and § 2635.502** – ethical standards and conflicts of interest;
- **44 U.S.C. § 3101 et seq.** – Federal Records Act (failure to preserve and protect federal records); and

- **31 U.S.C. §§ 1341–1342** – Anti-Deficiency Act (improper expenditure of appropriated funds during a lapse in appropriations).

I am a **confirmed federal whistleblower** under **OSC Case No. DI-16-2511**, which involved substantiated disclosures of violations of federal law, rule, and regulation within the **U.S. Department of Veterans Affairs**. A copy of the **OSC letter to the President of the United States** regarding that case is enclosed with this submission. This history demonstrates my established record of making protected disclosures under **5 U.S.C. § 2302(b)(8)** and further supports that my current disclosures and resulting retaliation fall squarely under whistleblower protection statutes.

I request that the **OIG open an independent investigation** into these matters and coordinate with the **U.S. Office of Special Counsel (OSC)**, where this case is currently pending under **Case No. MA-25-004957**, investigated by **Attorney Emily Drake**.

Respectfully,

Kevin Turnage

Complainant / Federal Employee

CC:
The Honorable **Mark Kelly**, U.S. Senator (AZ)
The Honorable **Ruben Gallego**, U.S. Senator (AZ)
The Honorable **Andy Biggs**, U.S. Congressman (AZ-05)

SECTION I – COMPLAINT NARRATIVE

("Describe the fraudulent action in your own words")

The fraudulent action involves a coordinated and retaliatory misuse of federal authority by senior officials at the **Indian Health Service (IHS) – Phoenix Indian Medical Center (PIMC)**, including **Debra Louise Ward Lund (Chief Executive Officer)**, **Kathy Dill (Chief Operating Officer)**, **Clinton Pope (Chief Quality Officer)**, **Naomi Hixson (Compliance Officer)**, **Candace Lee (Chief Nursing Officer)**, **Brandi Benjamin (Assistant Chief Nursing Officer)**, and **Jason White (Nurse Consultant)**.

These individuals collectively engaged in **fraudulent and retaliatory conduct** by fabricating and misrepresenting the basis for a *"hostile work environment"* investigation against me immediately following my **protected disclosures** of violations of federal law, regulation, and IHS policy by Chief Quality Officer **Clinton Pope**. The investigation was initiated not in good faith but as a **pretext to punish and discredit me as a federal whistleblower** and to conceal the misconduct I reported.

Specifically:

- The officials **knowingly recharacterized my lawful protected disclosures**—involving violations of patient care policy, compliance breaches, and misuse of federal systems—as "hostile" or "unprofessional" conduct.
- They **collaborated to misuse administrative and personnel authorities**, fabricating misconduct and creating false documentation to justify my removal from duty.
- I was **placed on Administrative Leave on June 27, 2025**, then **Investigative Leave on July 14, 2025**, and the leave was **illegally extended on August 26, 2025, for an additional 31 days**, exceeding the statutory 30-day limit set by **5 U.S.C. § 6329b (Administrative Leave Act of 2016)**.
- The extension was issued **without the required written justification or higher-level supervisory review**, rendering it procedurally invalid.
- **At the time I was placed on paid administrative and investigative leave, there was no legitimate investigation to conduct.** The agency expended federal funds and staff time to pay for my removal from duty and to sustain an investigation that did not exist until it **retroactively labeled my whistleblower activity as "hostile behavior."**
- The **investigation itself was fraudulent**: I was **not informed of its purpose until the call began on September 25, 2025**, and the **meeting invitation was sent after the scheduled start time (9:06 a.m.)**, depriving me of notice or the ability to prepare.
- **Naomi Hixson**, the Compliance Officer who was **a subject of my disclosures**, acted as the **investigator**, creating a direct **conflict of interest** under **5 C.F.R. § 2635.502(a)**.
- **Candace Lee (CNO)**, **Brandi Benjamin (ACNO)**, and **Jason White (Nurse Consultant)** participated in or endorsed the retaliatory process by supporting or providing false statements that sustained the fabricated allegations.

Collectively, these acts constitute **fraudulent misuse of investigatory and personnel authorities** to retaliate against a whistleblower, suppress evidence of legal violations, and mislead oversight entities.

SECTION II – SYSTEMIC MISCONDUCT AND PROGRAM INTEGRITY RISKS

This is not an isolated workplace dispute. It represents a **pattern of retaliation, concealment, and misuse of federal resources** with broader implications for program integrity and patient safety.

Misuse of Federal Funds and Time

The agency expended **federal salary and benefits funds** to maintain me on **paid administrative and investigative leave for 105 calendar days (75 workdays)** when no legitimate investigation existed.

- **Span:** June 27 – October 9, 2025 = **105 calendar days / 75 workdays**
- **Per-workday loaded cost:** $756.63 (salary, uniform, and employer benefits)
- **Total cost (75 workdays):**
  - Pay + uniform: **$39,684.15**
  - Employer benefits: **$17,063.40**
  - **Estimated taxpayer cost: $56,747.55**

This figure **does not include additional staff hours and federal salary costs** expended to sustain or justify this fraudulent action. The leave itself, coupled with the fabricated investigation, represents **waste, fraud, and abuse of appropriated funds** under federal oversight standards.

Improper Expenditures During Lapse in Appropriations

While numerous federal employees — including members of the **HHS Office of Inspector General** and other "non-excepted" personnel — are **furloughed without pay** due to the current **lapse in appropriations**, I continue to **receive full pay to remain at home** under a retaliatory and baseless investigative leave.
This inconsistent use of funds demonstrates **gross mismanagement and abuse of authority**, as the agency is expending taxpayer dollars to sustain a retaliatory personnel action while critical federal oversight operations are suspended for lack of funding.
Such conduct appears inconsistent with the **Anti-Deficiency Act (31 U.S.C. §§ 1341–1342)** and federal **Continuing Resolution limitations** on expenditures during shutdown periods.

Breakdown of Statutory and Regulatory Oversight

During my absence, there is **no one assigned or qualified to perform my duties**, which include **reviewing, drafting, and approving hospital policies for compliance with federal statutes and regulations**.
This failure means that **PIMC currently lacks oversight to ensure legal, statutory, and**

regulatory compliance in policy development and implementation.
The agency's retaliatory decision to remove me from duty therefore not only wasted taxpayer resources but also **created an ongoing compliance gap** that places the hospital and the federal government at risk of **systemic violations of law and patient safety regulations**.

Additional Program Integrity Risks

- **Obstruction of Oversight:** Quality and compliance data have been withheld or manipulated to prevent detection of noncompliance.
- **Federal Records Act Violations:** Leadership continues to use **personal cell phones and private messaging platforms** for official government business, risking spoliation of federal records in violation of **44 U.S.C. § 3101 et seq.**
- **Patient Safety and Public Health Risks:** The retaliatory suppression of compliance reports may have delayed corrective action for patient-care deficiencies, in violation of **42 C.F.R. Part 482**.

I respectfully request that the **OIG:**

1. **Open an independent investigation** into the retaliatory and fraudulent actions of the officials named above;
2. **Audit the use of administrative and investigative leave** for compliance with **5 U.S.C. § 6329b**;
3. **Examine whether federal funds, personnel time, or systems** were misused to facilitate retaliation;
4. **Assess the legal compliance risk created by the absence of any qualified official to review hospital policies during my leave**;
5. **Review the legality of expenditures made during the lapse in appropriations**;
6. **Coordinate with OSC** to ensure consistent findings; and
7. **Refer the responsible officials for disciplinary and administrative sanctions** under **5 U.S.C. § 1215**.

SECTION III – TIMELINE OF EVENTS

Date	Action / Event
June 27, 2025	Placed on **Administrative Leave** for 10 days.
July 14, 2025	Changed to **Investigative Leave** (30 days).
August 26, 2025	**Extension of Investigative Leave** issued for **31 days**, exceeding 30-day legal limit; no written review completed as required by **5 U.S.C. § 6329b**.
September 25, 2025 (9:00 a.m.)	Interview for alleged "hostile work environment" held. Invitation sent **after start time (9:06 a.m.)**; purpose undisclosed.
October 9, 2025	End of current investigative leave. Further extension would be **unlawful** absent statutory review.

SECTION IV – WHO ELSE KNOWS ABOUT THE MISCONDUCT

- **U.S. Office of Special Counsel (OSC)** – Case No. MA-25-004957, Attorney Emily Drake.
- **HHS Office of General Counsel (OGC)** – Copied on all preservation and litigation hold notices.
- **IHS Human Resources and Employee Relations** – Processed unlawful leave extensions.
- **IHS Headquarters and Area Office Compliance Officials** – Received my prior compliance reports.
- **Union Representative and PIMC Staff** – Aware of retaliation and fabricated allegations.
- **Federal Court (D. Ariz.)** – Case No. 2:25-cv-03367-PHX-CDB; related EEOC Case No. 2024004239.

SECTION V – ATTACHMENTS / EVIDENCE INDEX

1. **Supplemental Notice to the U.S. Office of Special Counsel (Oct 6, 2025)**
2. **Attachment 1 – Legal Summary of Protections**
3. **Attachment 2 – Expanded Interview Summary and Legal Analysis**
4. **Attachment 3 – Summary of Violations of Federal Law**
5. **Procedural Summary – September 25, 2025, Interview**
6. **Interview Question & Legal Violation Reference Table**
7. **Copy of OSC Transmittal Email (October 6, 2025)**
8. **OSC DI-16-2511 Letter to President**
9. **OSC DI-16-2511 Letter from OSC confirming complaint**

CERTIFICATION

I certify that the information provided herein is true and accurate to the best of my knowledge and belief and that all statements are made in good faith pursuant to **18 U.S.C. § 1001**.

Signature: _____
Date: October 7, 2025